IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA
SIXTH APPELLATE DISTRICT

PEOPLE OF THE STATE OF CALIFORNIA,

Plaintiff and Respondent,

v.

AMANDA OWENS,

Defendant and Appellant.

Court of Appeal Case No. H049566

Santa Cruz County Superior Court
Case No. 19CR05412

MOTION FOR CALENDAR PREFERENCE

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TO: The Honorable Mary J. Greenwood, Presiding Justice, and to the Honorable Associate Justices of the Court of Appeal:

Appellant, Amanda Owens, by and through appointed counsel on appeal, moves for an order granting immediate preference on the calendar for this appeal on the grounds that expedited review is necessary to give appellant the full benefit of an effective remedy. As explained below, if appellant prevails on the issue presented on appeal, she will likely be resentenced to a term at least one-year shorter than her current term. With full credits, including eligible milestone credits, she is presently set to be released on July 14, 2023. Thus, calendar preference is in the interest of justice and fairness.

This motion is based on the accompanying memorandum of points and authorities, the record and files in the present case, and the attached declaration of William M. Robinson.

MEMORANDUM OF POINTS AND AUTHORITIES

Calendar preference is provided for in California Rules of Court, rule 8.240. (See, e.g., *Warren v. Schecter* (1997) 57 Cal.App.4th 1189, 1198-1199.) Calendar preference "means an expedited appeal schedule, which may include expedited briefing and preference in setting the date of oral argument." (Rule 8.240.) Calendar preference is appropriate in order for the court to preserve its jurisdiction and to be able to fashion an appropriate remedy should the appellant prevail. (See, e.g., *Melaleuca, Inc. v. Clark* (1998) 66 Cal.App.4th 1344, 1353 & fn. 1 [ordering expedited review instead of issuing a writ of supersedeas].)

On October 21, 2021, Ms. Owens was sentenced to a total prison term of four years, based on a three-year middle term for involuntary manslaughter, and a one-year enhancement for personal use of a deadly weapon. (2CT 486-487, 489-490

In the present appeal, Ms. Owens contends that recent amendments to Penal Code section 1170, which both sides agree apply to her conviction and sentence in light of *In re Estrada* (1965) 63 Cal.2d 740, when applied to the factual circumstances of her case, require resentencing to the lower term of two years based on (a) the settled fact that she was a victim of intimate partner violence in connection with the current offense, and (b) the trial court's express findings that the aggravating and mitigating factors in the case were balanced. Although the parties to this appeal disagree as to whether a remand for resentencing is required, appellant believes, based on the arguments presented in this Court, that she has made a substantial showing of her entitlement to resentencing and a prison sentence reduced by one year.

As explained in the attached declaration of appellate counsel, Ms. Owens is scheduled to be released on October 17, 2023 if she earns full conduct credits, and can be released as soon as July 14, 2023 if she earns additional milestone credits at the Community Transition Reentry Program in Los Angeles where she is currently serving her sentence.

It follows from the foregoing that Ms. Owens should be granted calendar preference to ensure, if she is successful on appeal, that she will obtain a meaningful benefit from a reduced sentence. As further set forth in the attached declaration of appellate counsel, counsel intends to waiver oral

argument to further facilitate this court's prompt resolution of the present appeal.

Based on the foregoing, appellant respectfully asks this Court to grant calendar preference pursuant to Rule 8.240.

Dated: August 23, 2022

Respectfully submitted,

s/William M. Robinson
William M. Robinson
Assistant Director, Sixth District Appellate Program. Attorney for Appellant Jonathan Lee Conner